

24SMCV00989 24SMCV00989

County: los-angeles

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Case Number: 24SMCV00989 Hearing Date: September 3, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

CARISSA FERRERI,

Plaintiff,

v.

CASA DEL SOL SPIRITS CO., et al.,

Defendants.

Case No.: 24SMCV00989

Hearing Date: September 3, 2026

[TENTATIVE] order RE:

plaintiff's motion for

assignment order and for order

restraining judgment debtor

BACKGROUND

On May 26, 2026, the Court entered Judgment in favor of Judgment Creditor and against Judgment Debtor in the amount of \$129,819.52, together with attorneys' fees and costs in the amount of \$7,128.66, for a total Judgment of \$136,948.18. (Ex. A to Rapaport Decl.) The Judgment is final, and enforcement of the Judgment has not been stayed. (Rapaport Decl., ¶ 5.)

On June 9, 2026, the Clerk of the Court issued Abstracts of Judgment. On June 18, 2026, Judgment Creditor caused Abstracts of Judgment to be recorded in the official records of Los Angeles County and Santa Barbara County. Judgment Creditor thereafter sought a Writ of Execution to enforce the Judgment.

Despite entry of the Judgment and Judgment Creditor's enforcement efforts, no payments whatsoever have been received from Judgment Debtor or from any other person or entity on its behalf, and no amounts have been applied toward satisfaction of the Judgment. As of August 3, 2026, the amount due and owing is \$139,349.46, including accrued interest and post-judgment costs. (Rapaport Decl., ¶ 4.)

Judgment Creditor "is informed and believes" that Judgment Debtor conducts business with, and has rights to receive payments from, Southern Glazer's Wine & Spirits, LLC; Southern Glazer's Wine & Spirits of California; BevMo! Inc.; Total Wine & More; Retail Services & Systems, Inc.; Target Corporation; Whole Foods Market California, Inc.; and Whole Foods, including payments arising from accounts receivable, contract receivables, and other rights to payment. (Exhibit B attached to Rapaport Decl., ¶ 6.)

Judgment Debtor's products are also listed for sale on the websites of several of the companies identified above. (Exhibit C attached to Rapaport Decl., ¶ 7.) Based on these product listings, Judgment Creditor believes that Judgment Debtor maintains ongoing commercial relationships with those entities and has rights to receive payments arising from the sale and distribution of its products.

This hearing is on Judgment Creditor's motion for an assignment and restraining order. Ferreri seeks to assign to herself amounts owed to Judgment Debtor, including by: (1) Southern Glazer's Wine & Spirits, LLC, (2) Southern Glazer's Wine & Spirit's of California, (3) Bevmo! Inc., (4) Total Wine & More, (5) Retail Services & Systems, (6) Target Corporation, (7) Whole Foods Market California, Inc., (8) Whole Foods. Ferreri also moves for an order restraining the Judgment Debtor and any persons acting on its behalf from encumbering, assigning, disposing or spending Judgment Debtor's interest in various accounts receivable payments.

LEGAL STANDARD

Code Civ. Proc. § 708.510(a) states, in relevant part:

"(a) Except as otherwise provided by law, upon application of the judgment creditor on noticed motion, the court may order the judgment debtor to assign to the judgment creditor or to a receiver appointed pursuant to Article 7 (commencing with Section 708.610) all or part of a right to payment due or to become due, whether or not the right is conditioned on future developments, including but not limited to the following types of payments:

- (1) Wages due from the federal government that are not subject to withholding under an earnings withholding order.
- (2) Rents.
- (3) Commissions.

(4) Royalties.

(5) Payments due from a patent or copyright.

(6) Insurance policy loan value.”

In determining whether to order an assignment, the court may take into consideration all relevant factors, including the following:

“(1) The reasonable requirements of a judgment debtor who is a natural person and of persons supported in whole or in part by the judgment debtor.

(2) Payments the judgment debtor is required to make or that are deducted in satisfaction of other judgments and wage assignments, including earnings assignment orders for support.

(3) The amount remaining due on the money judgment.

(4) The amount being or to be received in satisfaction of the right to payment that may be assigned.”

(Code Civ. Proc. § 708.510(c).)¿

Code Civ. Proc. § 708.520¿provides that “[w]hen an application is made pursuant to¿Section¿708.510¿or thereafter, the judgment creditor may apply to the court for an order restraining the judgment debtor from assigning or otherwise disposing of the right to payment that is sought to be assigned.” (Code Civ. Proc., § 708.520(a).) “The court may issue an order pursuant to this section upon a showing of need for the order. The court, in its discretion, may require the judgment creditor to provide an¿undertaking.” (Id.,¿§ 708.520(b).) “[T]here is a relatively low threshold” for “an adequate showing of need for purposes of obtaining a restraining order.” (Legal Additions LLC v. Kowalski (C.D. Cal. July 26, 2011) 2011 U.S. Dist. LEXIS 81179 at * 7.)

DISCUSSION

Although “detailed¿evidentiary support” that a judgment debtor holds a right to payment from a third party is not required, the judgment creditor must provide “some¿evidentiary support”; “some degree of concreteness to the expected payment is required.” ¿(Legal Additions LLC v. Kowalski, No. C-08-2754 EMC, 2011 U.S. Dist. LEXIS 81179, 2011 WL 3156724, at *2 (N.D. Cal. July 26, 2011).) “Certainly, there needs to be more than just speculation before the remedy of an assignment order can be provided.” ¿(Id.)¿

In addition, the judgment creditor is required to “describe [the sources of the right to payment] with sufficient detail so that [d]efendants can file a claim of exemption or other opposition.”¿(Icho v. PacketSwitch.com, Inc., No. CV 01-20858-LHK (PSG), 2012 U.S. Dist. LEXIS 135602, 2012 WL 4343834, at *1 (N.D. Cal. Sept. 21, 2012)¿(alterations in original) (quoting¿Blue Grass Mfg. Co. of Lexington, Inc. v. Beyond A Blade, Flush-Cut, & Paws Off Tools, LLC, No. MC 10-80248 WHA, 2011 U.S. Dist. LEXIS 70556, at *7 (N.D. Cal. May 5, 2011).)

Here, Judgment Creditor has submitted a list of companies in Exhibit A to her counsel's declaration. But counsel does not specify how the list was prepared or what sources he used to compile the list. The motion only states that the list is based on

Judgment Creditor's information and belief. Judgment Creditor never says the bases for her belief.

To be sure, counsel also provides pages from websites which show that Casa Del Sol Spirits products are being sold on Target, BevMo! and Total Wine and More sites. Setting aside the fact that the webpages are not authenticated, the fact that Judgment Debtor's products are being sold on the sites does not necessarily mean that the sales amounts are owed to Casa Del Sol. Judgment Creditor does not indicate whether these products could only be obtained through Casa Del Sol or whether there could be indirect sellers of the products.

Based on this thin showing, the Court cannot grant Judgment Creditor's motion for assignment order. Because the Court declines to issue an assignment order for payments owed or to be owed by the companies listed in Exhibit A to counsel's declaration, the Court also declines to issue a restraining order. (See *Garden City Boxing Club, Inc. v. Briano*, No. CIV-F-06-1270 AWI GSA, 2007 U.S. Dist. LEXIS 95086, 2007 WL 4463264, at *2 (E.D. Cal. Dec. 13, 2007) (declining to issue a restraining order upon denying a request for assignment).)

CONCLUSION

For the foregoing reasons, the Court DENIES Plaintiff's motion for an assignment and restraining order.

DATED: September 3, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court